

Questionable Questions MPs who are supposed to take up people's d

? QUESTION OF INTEREST

Q Whether the NHAI has recently sought comments of various stakeholders on hybrid models to implement highway projects. If so, the details thereof along with the views of the various parties involved.



SAMBASIVA RAYAPATI RAO

Lok Sabha, Guntur, Andhra Pradesh (INC)

BUSINESS INTERESTS He owns the Jayalakshmi Group of companies which deals in tobacco, yarn, export of spices, production of electricity and construction of roads

? QUESTION OF INTEREST

Q Whether the Government proposes to empower the NHAI to extend working capital loans to road developers to help them tie over credit crunch and maintain speedy implementation of road projects.



KAVURI SAMBASIVA RAO

Lok Sabha, Eluru, Andhra Pradesh (INC)

BUSINESS INTERESTS The Andhra Pradesh-based builder is engaged in construction of major projects on irrigation, road, power and multi-storied urban housing complexes

Rajagopal Lagadapati (Congress)—are closely involved with road construction projects. The NHAI had sent notices to Madhucon Projects and Progressive Constructions for delaying work on some stretches of the Lucknow-Muzaffarpur road project. While Nageswara is a member of the COPU, Kavuri Sambasiva, founder-chairman of Progressive Constructions, is member of the Public Accounts Committee.

The 513-km World Bank-funded project, covering 12 road stretches in Uttar Pradesh and Bihar, is worth Rs 3,038 crore. Committee Chairman Kishore Chandra Deo has now asked them to declare their business interests, a first in the parliamentary history. The other committees are yet to come out with any such directive.

Recently, tempers ran high in the Rajya Sabha when CPI(M) leader Brinda Karat repeatedly intervened, citing conflict of interest, when indus-

trialist Rahul Bajaj (Independent) took part in a discussion on job losses. "For creating jobs, you have to relax some labour and contract legislations. Then, we in the organised sector will give higher wages," he said. At this, Karat intervened saying how the industrialist could ask for "labour laws to be scrapped". Bajaj shot back, "We (businessmen) have the right to express our views." K. Rahman Khan, the deputy chairman presiding over the proceedings, tried to settle the issue by saying, "He (Bajaj) is creating jobs". Khan has only good humour to rely on, except for some wobbly rules and conventions.

In India, disclosure of interest is often mired in piecemeal reforms. It has been ruled by the chairman of the Rajya Sabha that a member having a personal pecuniary or direct interest in a matter decided by the House has to declare the nature of that interest. The Rules of Procedure and Conduct

of Business in the Lok Sabha prescribe that if the vote of a division member in the House is challenged on personal, pecuniary or direct interest in the matter to be decided, the Speaker can decide whether the vote should be disallowed or not. The only other restraint is in the relatively obscure Handbook of Members which says that a member having a conflict of interest in a matter to be decided by the House is expected, while taking part in the proceeding, to declare it.

In the Rajya Sabha, there is a registry that maintains members' business and professional interests. The registry, a commendable initiative by the Ethics Committee, is still not in the public domain and only 212 of the 250 members have listed their interests. The Lok Sabha is not even maintaining the register. In the UK, a member who has interests in a small manufacturing company has to declare those when speaking on certain economic matters concerning manufacturing and small businesses. Back home, the member's pecuniary interest is not clearly defined leading to Brinda-Bajaj-style stand-offs. "I have every right to ask a question on tobacco, especially when its prices are falling. I am doing it because tobacco plays a

“ The rule can only say that the member has to declare the interest before he speaks in the House. You cannot throttle him. Speech is free in Parliament. ”

FALI S. NARIMAN, Lawyer

